Subject: Update: Retaliatory Investigation and Disparate Treatment Following Protected Disclosures – OSC Case MA-25-004957

From kdturnage@protonmail.com <kdturnage@protonmail.com>

To Drake, Emily<EDrake@osc.gov>

Date Monday, October 6th, 2025 at 5:47 PM

Dear Mrs. Drake,

Please find attached my **Supplemental Notice and supporting documentation** for inclusion in **OSC Case No. MA-25-004957**. These materials provide expanded evidence of **retaliation, procedural violations, and misuse of investigatory authority** by senior Indian Health Service officials at the Phoenix Indian Medical Center (PIMC).

The attached materials collectively establish:

- Procedural irregularities during the September 25, 2025 "hostile work environment" interview, including lack of advance notice, post-start invitation issuance, and denial of opportunity to prepare;
- Improper extension of investigative leave beyond the limits of **5 U.S.C. § 6329b** without the required written justification or 30-day supervisory review;
- Conflicts of interest by **Naomi Hixson**, who acted as investigator while serving as Compliance Officer and direct recipient of my protected disclosures;
- Retaliation and selective enforcement by **Debra Louise Ward Lund (CEO)**, **Kathy Dill (COO)**, **Clinton Pope (CQO)**, and **Naomi Hixson (Compliance Officer)** in violation of **5 U.S.C. § 2302(b)(8)–(9)** and **Title VII**; and
- Continuing due-process deficiencies related to my investigative-leave status.

Request for Disciplinary Action under 5 U.S.C. § 1215

Pursuant to **5 U.S.C. § 1215**, I respectfully **request that the Office of Special Counsel initiate disciplinary proceedings** against the above-named officials for committing **prohibited personnel practices** and knowingly retaliating against a federal whistleblower.

The evidence attached demonstrates a sustained pattern of bad-faith conduct and abuse of authority by these officials, undertaken in reprisal for my protected disclosures regarding violations of federal law, policy, and compliance standards. I request that OSC pursue appropriate disciplinary measures, including suspension, removal, or other corrective action, consistent with **§ 1215(b)** and related authorities.

Referral to HHS Office of Inspector General

In parallel, I will be submitting a **retaliation and misconduct complaint** to the **HHS Office of Inspector General** concerning these same officials. The OIG should be informed that these acts were undertaken in **bad faith**, with full knowledge of my protected whistleblower status, and in violation of both the **Whistleblower Protection Act** and the **Administrative Leave Act of 2016**.

Please confirm receipt of these materials. I appreciate your continued diligence and commitment to protecting the integrity of the federal whistleblower process.

Attachments:

1. Supplemental Notice to the U.S. Office of Special Counsel (Oct 6 2025)
2. Attachment 1 – Legal Summary of Protections
3. Procedural Summary – September 25 Interview
4. Attachment 2 – Expanded Interview Summary and Legal Analysis
5. Attachment 3 – Summary of Violations of Federal Law
6. Interview Question & Legal Violation Reference Table
7. Administrative Inquiry Invitation

Respectfully,

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🔑 PGP Fingerprint: `CDB6 543B 51C2 056B 5333 CECE 4C44 C5E3 7A30 4FF6`

Sent with Proton Mail secure email.

1.13 MB 7 files attached

Attachment 1 Legal Summary of Protections.pdf 123.60 KB

Attachment 2 – Expanded Interview Summary and Legal Analysis.pdf 178.92 KB

Attachment 3 – Summary of Violations of Federal Law.pdf 219.62 KB

Procedural Summary – September 25, 2025 “Hostile Work Environment” Interview.pdf 160.74 KB

Supplemental Notice to the U.S. Office of Special Counsel.pdf 201.16 KB

Administrative Inquiry Invite.pdf 108.38 KB

Interview Question & Legal Violation Reference Table.pdf 166.19 KB